

Local Government

Class Schedule and Reading Assignments

Thursday's reading assignment is now the final reading assignment.

Apr. 21, 2026 - Amendment Procedures

~~Pgs. 1133-1160~~

Apr. 23, 2026 - Makeup Class - Review Session

~~Pgs. 1182-1196~~

Exercise

Two theories of local power

Dillon theory - all local power is derived from state power

Cooley theory - some local power is inherent

**Theory of local power is a
backdrop**

**To understand these cases, we need to pay
close attention to state constitutional
provisions and state statutes**

City of Dayton v. State

87 N.E.3d 176 (Ohio 2017)

Statute: Police officer must be present at traffic camera

Constitution: “municipalities shall have authority to exercise all powers of local self-government and to adopt and enforce within their limits such local police, sanitary and other similar regulations, as are not in conflict with general laws”

Dwagfys Manufacturing, Inc. v. City of Topeka

443 P.3d 1052 (Kan. 2019)

Local ordinance: unlawful to sell cigarettes to people under the age of 21

Statute: unlawful to sell cigarettes to people under the age of 18

Constitution: Home rule “to determine their local affairs and government by ordinance” and “powers and authority granted cities pursuant to this section shall be liberally construed for the purpose of giving to cities the largest measure of self-government.”

Cooperative Home Care, Inc. v. City of St. Louis

514 S.W.3d 571 (Mo. 2017)

Local ordinance: graduated increases to the minimum wage for people working in St. Louis

Statute: minimum wage law lower than St. Louis

Constitution: “Any city which adopts or has adopted a charter for its own government, shall have all powers which the general assembly of the state of Missouri has authority to confer upon any city, provided such powers are consistent with the constitution of this state and are not limited or denied either by the charter so adopted or by statute.”

Bass v. City of Edmonds

508 P.3d 172 (Wash. 2022)

Local ordinance: gun storage law

Statute: less restrictive gun storage law

Ferry v. City of Montpelier

296 A.3d 749 (Vt. 2023)

Local ordinance: non-citizens can vote in local elections

Constitution: only citizens can vote

Alaska Trappers Ass'n v. City of Valdez

548 P.3d 332 (Alaska 2024)

Local ordinance: prohibition on trapping

Constitution: declares the legislature shall “provide for natural resource management”

City of Laredo v. Laredo Merchants Ass'n

550 S.W.3d 586 (Tex. 2018)

Local ordinance: no single-use packaging

Statute: local government cannot restrict “the sale or use of a container or package” if the restraint is for “solid waste management purposes” and the “manner” of regulation is “not authorized by state law.”

Ortiz v. Commonwealth of Pennsylvania

681 A.2d 152 (Pa. 1996)

Local ordinance: no assault rifles

Statute: local government can't make gun laws

State Ex Rel. Brnovich v. City of Tucson

399 P.3d 663 (Ariz. 2017)

Local ordinance: Police should destroy confiscated guns.

Statute: Local government needs to try to sell guns before destroying them.

New York Statewide Coalition of Hispanic Chambers of Commerce v. New York City Department of Health & Mental Hygiene

16 N.E.3d 538 (N.Y. 2014)

Exercise